

Cyber 9/12 Guide

Situation:

Critical infrastructure devices, mainly within **water treatment networks**, face threats from **state-backed actors**. Many of the devices being targeted are **unpatched, unsupported, and considered End-of-Life**, allowing attackers to **exploit known vulnerabilities** to establish persistence.

The goal of this threat actor appears to be **strategic pre-positioning**, with efforts suggesting a focus on **having a long-term effect on IT and OT systems**. There is some **public concern** surrounding the **insecurity of critical infrastructure** systems.

Meanwhile, a new **ransomware class**, “**RUGRAT**,” targeted certain **critical infrastructure operators and large businesses**, proliferated by an **unattributed threat actor** that likely **differs from the pre-positioning actor**.

There is a call for **public-private cooperation** between affected organizations, cloud providers, and law enforcement to **identify and eradicate these threats**. Some cloud providers have set an example by **proactively detecting and terminating** accounts associated with the threads in collaboration with law enforcement.

Government Agencies:

FBI: Federal agency for cyber investigations, disruption ops, and attribution of criminal & state activity.

DOJ: Legal authority, oversight, and court-approval for cyber ops (ex. Rule 41 warrants)

CISA: National coordinator for crit. Infra. Cybersec risk management and sector guidance.

U.S. Treasury: Traces illicit financial flows, sanctions actors, and supports attribution via crypto analysis.

NSC: Sets national-level policy direction and coordinates interagency response to cyber incidents.

EPA: Water-infrastructure regulator: directs operational risk mitigation for utilities.

DHS: CISA parent department. Domestic security & public-private cyber coordination.

E-ISAC: Electricity Information Sharing & Analysis Center – Intel-sharing hub for energy sector.

MFG-ISAC: Manufacturing intel-sharing, threat coordination body.

Water-ISAC: Cybersecurity and resilience coordination body for water sector.

NCIJTF National Cyber Investig. Joint Task Force: Coordinate/info, cyber threat investigations, intel analysis.

Precedents & Case Study:

2026:

- [Jan 28](#): Google used federal court order to remove dozens of domains belonging to Ipidea, a Chinese company, from the internet for malware on millions of phones.

2025:

- [July 25](#): BlackSuit (Royal) ransomware infrastructure servers, domains, & crypto assets seized by U.S. law enforcement & international partners. Coordination: DHS, FBI, Secret Service, IRS-Criminal Investigation, and U.S. allies.

2024:

- [May 24](#): FBI takedown, operation “Endgame”, multinational law enforcement initiative led by FBI to dismantle global criminal infrastructure.

2023-Earlier:

- [April 22](#): **DOJ** disruption of two foreign state-sponsored botnets; Cyclops Blink, U.S. federal prosecutors used amended **Rule 41 warrants** to disrupt global botnet by accessing infected devices.
- [March 20](#): Microsoft/FBI takedown of Necurs Botnet – Private Sector working in federal framework. Microsoft took control of Necurs infrastructure used for malware.

Cyber 9/12 Guide Cont.

Key Points: Phase 1

- Phase 1 prioritizes situational awareness over disruption.
- The goal is to map victims and understand adversary access, not to remove it prematurely.
- Legal authorities (Rule 41) are used narrowly and defensibly to avoid collateral damage.
- Intelligence sharing is controlled and targeted to protect investigations and prevent panic.
- This phase creates decision space for later disruption or defense actions.

Judges Guide:

- **How/why do agencies work together?** – Cyber threats affect various sectors, laws, regulations, and finance requiring coordinated efforts.

- **Why not act immediately?** – Premature takedowns: tip off the threat actor, harm attribution, disrupt essential services, or escalate internationally before understanding the full scope.

- **Why solution 1, 2, 3, 4 for Phase 1?** – Who, what, when, where, why, how?

1. **Why Temporary Task Force?** – To synchronize intel, legal authority, and sector response under NSC direction and avoid uncoordinated actions.
2. **Why Rule 41?** – Provides court-approved authority for remote access, scoped for mapping, not disruption, minimizing legal and escalation risks. Will not affect service availability and international relations.
3. **Why involve U.S. Treasury?** – Ransomware attribution hinges on financial flows, crypto tracing identifies operators, infrastructure, and potential state or proxy links.
4. **Why TLP:RED?** – A TLP:RED advisory limits exposure while allowing rapid defensive action for high-risk operators. Traffic-Light Protocol: RED (Highest Tier)

- **Who is ultimately in charge? How do you prevent interagency friction and paralysis?** – The NSC provides direction and deconfliction. DOJ governs legal authority. The FBI executes investigations under authority. CISA, EPA,

- **What if PESTIS remains dormant for months? Do we remain in Phase 2 indefinitely?** – Potentially, by monitoring, validating intelligence, and hardening defenses, we place ourselves in a key position for action. Phase 4 reforms proceed regardless of threat actor action. Once we decide to take action we can with a measured and comprehensive approach.

- **What are the international escalation risks of Rule 41 actions? How do we manage attribution?** – Phase 1 Rule 41 action is strictly limited to mapping and evidence collection. Attribution and takedown take place after initial analysis is complete.

- **Why is regulation at Phase 4 instead of immediately?** – Immediate regulation without understanding risks misalignment and potential harm. Phase 4 takes place after earlier Phases have developed.